

would be bound, for the necessity of his paying the money immediately to the legatees would not, if they were of age, prevent the completion of the sale, and therefore there is no reason why the purchaser should be exempted from seeing to the application.

Cestui que trust abroad. — Again, suppose a trust for sale, with a direction to distribute the proceeds between A., B., and C., and that, after the date of the instrument, C. quits the country or cannot be found. According to the first principle, as the absence of C. was not an event in the contemplation of the settlor, and no inference can be drawn that he meant the trustees to sign receipts, it follows that the sale is rendered impossible, and the contradiction arises, that the settlor having in *express terms* directed a sale, and it being admitted that the will of the settlor is authoritative, yet the execution of that intention is intercepted by the construction of equity. "It were difficult," says Lord St. Leonards, "to maintain that the absence of a *cestui que trust* in a foreign country should, in a case of this nature, impede the sale of the estate" (a), and yet to such a result the rule in question, if there be no exception to it, would apparently lead. But according to the other principle suggested, no such obstacle arises. The receipts of the trustees would then *primâ facie* be discharges, as necessary to the execution of the sale; and as C. is not at hand, the purchaser in respect of C.'s share in the purchase-money could not be called upon to observe a rule which would interpose a bar to the accomplishment of the expressed purpose of the settlor (b).

[29. If a person is interested in property in several capacities, and in one of such capacities can give a valid discharge for the purchase-money on the sale of the property, a purchaser who has no notice of an intended misapplication by such person of the purchase-money will be discharged by his receipt (c), and it is immaterial that the conveyance does not

(a) Sugd. Vend. & Purch. 844, 11th ed.; and see *Forbes v. Peacock*, 12 Sim. 544; *Ford v. Ryan*, 4 Ir. Ch. Rep. 342.

(b) Receipts of trustees are now in most cases made sufficient dis-

charges by Act of Parliament, see *ante*, pp. 451, 452.

[(c) *Corser v. Cartwright*, 7 L. R. H. L. 731; *West of England and South Wales District Bank v. Murch*, 23 Ch. D. 138.]